

**BEFORE THE ARBITRAL TRIBUNAL COMPRISING OF
THE SOLE ARBITRATOR SENIOR ADVOCATE N.N.P.
SARDESAI AT PANAJI, GOA**

In the matter of:

VIKRAM SHAH

...Claimant

V/s.

RIVA TRINDADE & 3 Ors.

...Respondents

**ADDITIONAL REPLY ON BEHALF OF
THE RESPONDENT NOS. 1, 2 AND 3 TO
APPLICATION SEEKING INTERIM
MEASURES FILED BY THE CLAIMANT.**

MAY IT PLEASE THIS HON'BLE TRIBUNAL:

Respondent Nos. 1, 2 and 3 state and submit as under:

1. The Respondent Nos. 1, 2 and 3 (hereinafter referred to as “these Respondents”) have already filed a reply to the application under Section 17 filed by the Claimant and have filed a Statement of Defense in order to protect their interests in the present arbitral proceedings. The contents of the said reply may be deemed to have been incorporated herein mutatis mutandis.

2. At the outset, these Respondents deny the contents of the application under reply and dispute the contents, veracity and/or material, including the material produced by the Claimant during the present proceedings.
3. These Respondents state that, whilst pressing for the claims, reliefs and interim measures before this Tribunal, the Claimants have suppressed material facts, circumstances and documents which are germane to the present proceedings and are bound to be within the knowledge of the Claimants.
4. These Respondents state that the application under reply is liable to fail on the grounds of suppression of material facts, delay and laches, and for being fundamentally flawed.
5. Recently, these Respondents have acquired records in the form of bank statements. The said statements reveal that the Claimant and Respondent No. 4 herein were refunded, returned and/or paid various amounts from the personal

account of Late Pascoal Trindade. It is apparent from the said statements that the Claimant's entity, namely Pravar Trade Investment Pvt. Ltd., was paid an amount of Rs. 71,00,000/- (Rupees Seventy-One Lakh Only) on 03.05.2014, corresponding to the amount purportedly invested by the Claimant. The said statements further reveal that, apart from the aforesaid payment of Rs. 71,00,000/- (Rupees Seventy-One Lakh Only), various amounts were remitted to Pravar Trade Investment Pvt. Ltd., aggregating to a total sum of Rs. 1,09,00,180/- (Rupees One Crore Nine Lakh One Hundred and Eighty Only).

6. Similarly, an amount of Rs. 68,50,000/- (Rupees Sixty-Eight Lakhs Fifty Thousand Only) was remitted to the account of Respondent No. 4 on 26.04.2014, corresponding to the amount purportedly invested by Respondent No. 4 herein. The statements further reveal that, apart from the aforesaid payment of Rs. 68,50,000/- (Rupees Sixty-Eight Lakh Fifty Thousand Only), various amounts were remitted to Respondent No. 4, aggregating to a total sum of Rs.

1,06,50,116/- (Rupees One Crore Six Lakh Fifty Thousand One Hundred and Sixteen Only). The remittance of the said amounts demonstrates that the entire purported advances and/or investments made by the Claimant and Respondent No. 4 herein were refunded to them and, consequently, the claims pertaining to entitlement over the subject property, partition and/or damages and losses raised in connection with the AOA cannot be sustained.

7. The Respondents submit that the Claimants herein have intentionally suppressed these facts from this Hon'ble Tribunal with a view to obtaining orders from this Tribunal and frustrating the rights of these Respondents. The Claimants have systematically, consistently and mala fide refused to produce statements of account, audited financial statements and/or any financial records and/or statements pertaining to any of the businesses.

8. In view of the remittances referred to above, it is evident that the intent of the Claimants in suppressing such vital facts

from these Respondents and/or this Hon'ble Tribunal was to obtain orders and usurp the rights vested in these Respondents in respect of the subject properties.

9. In addition to the aforesaid conduct, the Claimants have also suppressed the fact that the Claimant is the authorized representative of M/s. Loonkar and has represented the said company before the Court of the Civil Judge, Senior Division, at Panaji, in a suit filed by the Comunidade. During the proceedings before the Ld. Civil Judge, Senior Division, at Panaji, the Claimant categorically admitted that the subject properties are owned by Late Pascoal Trindade and Respondent No. 2, contrary to the statements now made by him in the Statement of Claim.
10. The Affidavit-in-Evidence was filed before the Court on 20.04.2022. Interestingly, the said Affidavit-in-Evidence dated 20.04.2022, which was drafted at the instance of the Claimant with the obvious assistance of his lawyer, categorically records that the subject properties are owned

and exclusively possessed by Respondent Nos. 1, 2 and 3. In the entire Affidavit-in-Evidence, the Claimant neither claimed to be a co-owner of the subject properties nor made any reference to M/s. PVM and/or his purported investment in the subject properties. Evidently, the Claimant is in the habit of adopting inconsistent and incongruous stands depending upon the nature of the proceedings he faces. Such conduct on the part of the Claimant cannot be countenanced in law and, in particular, disentitles him from claiming any relief either in the facts and circumstances of the present case or in law. This conduct of the Claimant becomes relevant considering the scope and ambit of the Order dated 13.10.2022 passed by the Civil Judge Senior Division at Panaji whereby the said Court, obviously after hearing the Claimant as the representative of Loonkar Developers Pvt. Ltd., has given findings qua existence, entitlements of M/s. PVM. It is more so relevant to note that the Legal Notice dated 29.10.2022, purportedly issued by Loonkar Developers Pvt. Ltd. is clearly engineered by the Claimant

considering he is the authorized representative of Loonkar Developers Pvt. Ltd.

11. These Respondents state that none of the actions and/or omissions attributable to these Respondents has caused any real loss/damage to the Claimant and/or Respondent No. 4.
12. The Respondents submit that the material on record, particularly the Statements of Account and the Affidavit-in-Evidence, belies the case of the Claimant on several aspects, including but not limited to the claim of divestment and the investments allegedly made under the AOA.
13. It is evident that the Claimant has categorically admitted before a competent Court that the ownership and possession of the subject properties are exclusively vested in Late Pascoal Trindade, his legal representatives and his moiety. In this peculiar factual background, any claim for interim measures and/or final reliefs is wholly unsustainable.

14. Notably, Respondent No. 2 has been brought on record solely in her capacity as one of the legal heirs of Late Pascoal Trindade and not in her individual capacity. Undeniably, Respondent No. 2 and Late Pascoal Trindade were married under the regime of communion of assets. Consequently, during the lifetime of Late Pascoal Trindade, Respondent No. 2 was a moiety holder and co-owner of the subject property in her own independent right. The rights, title, interest, entitlement and possession of Respondent No. 2 in respect of the subject property were neither the subject matter of, nor intended to be governed by, the Articles of Association relied upon by the Claimants. The said Articles of Association neither contemplated nor dealt with the independent proprietary rights of Respondent No. 2 in the subject property.

15. The existence of the regime of communion of assets between Respondent No. 2 and Late Pascoal Trindade is undeniable. It is further admitted that Respondent No. 2 was never a

party to the Articles of Association relied upon by the Claimants.

16. Respondent No. 2 states that her independent rights, title, interest, entitlement and possession as a moiety holder were never contributed to, vested in, or made subject to the Articles of Association. Consequently, and without prejudice to the contention that Respondent No. 2 has been impleaded only in her capacity as a legal representative of Late Pascoal Trindade, her independent proprietary rights as a moiety holder do not fall for adjudication in the present proceedings.

17. In any event, even assuming that Respondent No. 2 is a proper party to the present arbitral proceedings by virtue of her status as a legal representative of Late Pascoal Trindade, the scope of such representation can extend only to the rights, obligations and liabilities of Late Pascoal Trindade. The independent rights and entitlements vested in Respondent No. 2 as a moiety holder in her own right cannot

be adjudicated upon, curtailed, extinguished or otherwise affected in the present proceedings, as sought to be done by the Claimants.

18. Without prejudice to the aforesaid, the Articles of Association are neither registered nor stamped in accordance with law. In any event, the provisions contained therein, particularly those pertaining to entitlement, vesting, cessation and devolution of rights, are neither binding upon nor enforceable against Respondent No. 2. The same cannot, in any manner, defeat the proprietary rights and entitlements vested in Respondent No. 2 under the law governing communion of assets, which rights existed independently of and de hors the Articles of Association. Consequently, the said Articles of Association cannot, by themselves, create, extinguish, curtail, transfer, encumber or otherwise affect the independent rights, title, interest, entitlement and possession of Respondent No. 2 in respect of the subject property.

19. Recently, these Respondents have acquired records in the form of bank statements. The said statements reveal that the Claimant and Respondent No. 4 herein were refunded, returned and/or paid various amounts from the personal account of Late Pascoal Trindade. It is apparent from the said statements that the Claimant's entity, namely Pravar Trade Investment Pvt. Ltd., was paid an amount of Rs. 71,00,000/- on 03.05.2014, corresponding to the amount purportedly invested by the Claimant. The said statements further reveal that, apart from the aforesaid payment of Rs. 71,00,000/-, various amounts were remitted to Pravar Trade Investment Pvt. Ltd., aggregating to a total sum of Rs. 1,09,00,180/-. Similarly, an amount of Rs. 68,50,000/- was remitted to the account of Respondent No. 4 on 26.04.2014, corresponding to the amount purportedly invested by Respondent No. 4 herein. The statements further reveal that, including the aforesaid payment of Rs. 68,50,000/-, various amounts were remitted to Respondent No. 4, aggregating to a total sum of Rs. 1,06,50,116/-. The remittance of the said amounts demonstrates that the entire purported advances

and/or investments made by the Claimant and Respondent No. 4 herein were refunded to them and, consequently, the claims pertaining to entitlement over the subject property, partition and/or damages and losses raised in connection with the AOA cannot be sustained. The Claimant has not produced any material to demonstrate that the said amounts refunded / paid to the Claimant and/or Respondent No. 4 were reinvested and/or brought back into the AOA in any manner and/or they have made any other independent investments in the AOA and/or for the purpose of acquisition of the property. The contents of the balance sheet and the statement of income and profit-loss account relied by the Claimant are seriously disputed. It is obvious from the reading of the balance sheet and the accounts produced by the Claimant that the same are self-serving documents created / concocted and/or engineered after the invocation notice dated 28.02.2024.

20. The Respondents submit that the Claimants herein have intentionally suppressed these facts from this Hon'ble

Tribunal with a view to obtaining orders from this Tribunal and frustrating the rights of these Respondents. The Claimants have systematically, consistently and mala fide refused to produce statements of account, audited financial statements and/or any financial records and/or statements pertaining to any of the businesses. In view of the remittances referred to above, it is evident that the intent of the Claimants in suppressing such vital facts from these Respondents and/or this Hon'ble Tribunal was to obtain orders and usurp the rights vested in these Respondents in respect of the subject properties.

21. By a Deed of Sale dated 14.07.2014, executed subsequent to the purported Articles of Association, a portion of the larger property was conveyed by Respondent No. 2 and Late Pascoal Trindade in favour of Loonkar. Significantly, the said Deed of Sale contains no reference whatsoever to the purported efforts allegedly made by the Claimant and Respondent No. 4 in developing and/or acquiring the property, nor does it contain any reference to the existence

of the Articles of Association or to any alleged rights, title, interest, entitlement or claim of the Claimants and/or Respondent No. 4 in the property conveyed thereunder. It is pertinent to note that Respondent No. 4 and his then advocate, Mr. Rao, were witnesses to the said Deed of Sale. The execution of the said Deed and the contents thereof were therefore well within the knowledge of the Claimants and Respondent No. 4. Despite such knowledge, neither the Claimants nor Respondent No. 4 asserted any proprietary interest in the property conveyed, nor did they insist upon being joined as confirming parties, consenting parties, co-vendors or otherwise participating in the transaction.

22. The aforesaid omission is demonstrative of the fact that the Claimants and/or Respondent No. 4 had no real role in the development and/or acquisition of the said properties. Consequently, any claim for partition, compensation, declaration of entitlement or any other relief premised upon an assertion of title or proprietary interest in the subject properties is devoid of merit and liable to be dismissed.

23. The terms of the Articles of Association themselves make it abundantly clear that the same did not constitute a juristic entity capable of independently holding or acquiring rights, title or interest in the immovable properties forming the subject matter of the present dispute. The case of the Claimants is that the subject properties ceased to vest in Late Pascoal Trindade and thereafter became vested in the Articles of Association and/or the arrangement contemplated thereunder. The purported divesting of title from Late Pascoal Trindade and the corresponding vesting of title in favour of the Articles of Association, or any body purportedly created thereunder, is unsupported by any registered conveyance, deed of transfer, instrument of assignment or other legally recognized mode of transfer of immovable property. Consequently, the Articles of Association could not and did not operate to transfer, convey, assign, extinguish or otherwise alter the title vested in Late Pascoal Trindade and/or Respondent No. 2.

24. It is an established position that the Articles of Association relied upon by the Claimants neither constituted a company incorporated under law nor a partnership firm recognized by any statutory framework. The arrangement contemplated thereunder did not possess any independent juristic personality or legal character capable of holding, acquiring or enforcing proprietary rights in its own name. In the absence of any recognized legal status or juristic character, the Articles of Association could not, by themselves, become the repository of rights, title or interest in the subject properties. Consequently, any claim founded upon the premise that proprietary rights, including rights qua compensation, damages or losses, vested in the Articles of Association and/or that such rights are presently sought to be enforced thereunder is legally untenable and unsustainable.
25. The Respondents state that the Joint Venture Agreement dated 25.04.2014 is of no legal consequence insofar as the claims and reliefs sought against Respondent No. 2 are

concerned. Undeniably, Respondent No. 2 was not a signatory to the said Joint Venture Agreement. The said agreement appears to have been executed by Late Pascoal Trindade, purportedly acting under the authority of a Power of Attorney. However, the said Power of Attorney has neither been annexed to the Joint Venture Agreement nor placed on record in the present proceedings. In the absence of the said Power of Attorney being produced on record, the Joint Venture Agreement cannot be relied upon and/or be given any legal effect qua the entitlements of the Respondents. In fact, no record has been produced evidencing the execution and/or registration of such Power of Attorney as contemplated therein.

26. Without prejudice to the aforesaid, the present arbitral proceedings are not founded upon, nor do they arise out of, the Joint Venture Agreement dated 25.04.2014. Consequently, the question of Respondent No. 2 seeking any independent declaration or relief in relation to the validity thereof does not arise in the present proceedings. Even

otherwise, the Joint Venture Agreement neither does nor can operate to divest, extinguish, transfer, encumber or otherwise affect the proprietary rights, title, interest, entitlement and moiety rights of Respondent No. 2 in the subject property.

27. In essence, the Claimants seek recognition of purported proprietary rights in the subject properties dehors the registered title documents and without any legally valid instrument evidencing the transfer or vesting of such rights in their favour. The reliefs sought by the Claimants necessarily require an adjudication upon questions of title and ownership contrary to, and inconsistent with, the registered instruments governing the subject properties, which have remained operative for decades. Consequently, in the absence of any legally recognized or crystallized rights in favour of the Claimants, and particularly in the background of their attempt to assert and enforce alleged rights of ownership, vesting, title and entitlement contrary to, and in derogation of, the registered instruments

governing the subject properties, the claims raised in the present proceedings are wholly misconceived, untenable and liable to be rejected.

28. The averments in the Statement of Claim make it evident that the present arbitral proceedings have been initiated in relation to the affairs of M/s. Kuval Projects Private Ltd., Pravar Trade Investment Private Ltd., M/s. Sumer Builders Private Ltd., and the pending proceedings involving the Comunidade of Bambolim, as the determination of the claims would necessarily entail an adjudication upon the rights, title and interest of the parties in respect of the subject properties. Apart from the parties referred to above, any Award that may be passed in the present proceedings would have the effect of prejudicially affecting and potentially extinguishing the rights and claims of various third parties, including financial institutions (if any), with retrospective effect, thereby virtually nullifying, either wholly or partially, the rights and interests created on the basis of the Deeds of Sale. The grant of declarations of such a nature in an intra-



party arbitration has the potential to assume far-reaching consequences and permit the misuse of an arbitral Award or interim measure for collateral purposes. Such an exercise would be contrary to the fundamental policy of Indian law governing arbitration and would result in the adjudication of rights of persons who are not parties to the arbitration agreement or the present proceedings.

29. In the aforesaid circumstances, the Claimants have failed to demonstrate the existence of any prima facie case in their favour so as to warrant the grant of the interim reliefs sought in the present proceedings. In any event, the balance of convenience overwhelmingly tilts in favour of these Respondents. Further, these Respondents are likely to suffer irreparable loss, prejudice and injury in the event the interim measures sought by the Claimants are granted by this Hon'ble Tribunal.

30. Vide Order dated 13.03.2020, the Ld. Trial Court has already directed that these Respondents, amongst others, shall stand

restrained from creating any third-party rights and/or altering the nature of the suit property. The existence of the said order constitutes an additional ground for dismissal of the application under reply insofar as such reliefs are concerned. Apart from the aforesaid, these Respondents state that the Claimants and/or Respondent No. 4 have not suffered any actual or real loss on account of the conduct of these Respondents. In any event, assuming without admitting that any loss has been suffered, claims in respect thereof have already been raised by the Claimants and are pending adjudication in the present proceedings. These Respondents further state that the proceedings before the competent Civil Court are being diligently prosecuted by them and, being the owners of the subject properties, it is in their own interest to protect and preserve their rights, title, interest and entitlements therein. Accordingly, these Respondents are actively pursuing the said proceedings by engaging advocates, attending to the litigation and taking all necessary steps for the protection of the subject properties.

31. In the aforesaid circumstances, the interim measures sought by the Claimants are wholly unwarranted and unsustainable in law. The claims raised by the Claimants are fundamentally misconceived, devoid of merit and liable to be rejected.

32. In view of the foregoing facts and circumstances, the application under reply is liable to be dismissed with costs.

Date: 12.06.2026

Place: Panaji, Goa.

Respondent No. 1

Respondent No. 2

Respondent No. 3

AFFIDAVIT

I, **MR. RIVA TRINDADE**, son of Late Mr. Pascoal Trindade, major in age, resident of 494, Dona Paula, Jetty, Panaji, North Goa, Goa, 403001, the Respondent No. 1 herein, for myself and on behalf of Respondent Nos. 2 and 3 herein, do hereby on solemn affirmation state and submit as follows:

1. I say that I have filed the above additional reply before this Hon'ble Tribunal.
2. I say that the contents at paragraph nos. 1pt, 2, 3, 4pt, 5, 6pt, 7pt, 8pt, 9pt, 10pt, 11pt, 12pt, 13pt, 14, 15pt, 16pt, 17pt, 18pt, 19pt, 20, 21pt, 22pt, 23pt, 24pt, 25pt, 26pt, 27pt, 28pt, 29pt, 30pt, 31pt and 32pt of the additional reply above are true and correct to my personal knowledge and belief and/or based on information derived from the records and/or inferences.
3. I say that the contents at paragraph nos. 1pt, 4pt, 6pt, 7pt, 8pt, 9pt, 10pt, 11pt, 12pt, 13pt, 15pt, 16pt, 17pt, 18pt, 19pt, 21pt, 22pt, 23pt, 24pt, 25pt, 26pt, 27pt, 28pt, 29pt, 30pt,

31pt and 32pt of the additional reply above are in the nature of legal submissions which I believe to be true and correct.

4. I say that the contents of the present Affidavit at paragraph nos. 1, 2 and 3 above are true and correct to my personal knowledge and belief.

Solemnly affirmed at Panaji, Goa,

On this 12th day of June, 2026.

DEPONENT